

## 25STCV20454 25STCV20454

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-21

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Case Number: 25STCV20454 Hearing Date: July 21, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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JEFFREY ADAM BERNSTEIN

Plaintiff,

vs.

ODEKO, INC., et al.

Defendants

Case No.:

25STCV20454

Hearing Date:

July 17, 2026

ORDER GRANTING MOTION TO WITHDRAW DEEMED ADMISSIONS

## I. BACKGROUND

Defendants allegedly negligently failed to stop or control their vehicle, resulting in Defendants' vehicle colliding with Plaintiff Jeffrey Adam Bernstein's ("Bernstein") vehicle. Bernstein sues Defendants for motor vehicle tort and general negligence.

On June 1, 2026, Defendant Hector Jimenez ("Jimenez") filed the instant motion to withdraw deemed admissions. Bernstein opposed. Jimenez replied.

## II. LEGAL STANDARD

Code of Civil Procedure section 2033.3001 provides: "(a) A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties. (b) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits."

## III. DISCUSSION

Jimenez requests the Court withdraw the matters deemed admitted against Jimenez, pursuant to the Court's March 18, 2026 order, as admissions were deemed admitted due to mistake, inadvertence, or excusable neglect. In order for the Court to grant the requested relief, the Court must determine admissions were the result of mistake, inadvertence or excusable neglect, and that the party who obtained the admissions will not be substantially prejudiced.

Bernstein initially served the Request for Admissions ("RFA") on September 22, 2025. (Mot., Blikian Decl. ¶ 2.) Responses were due December 30, 2025; at that time, Jimenez's counsel served objection only responses. (Id. at ¶¶ 4-5, Exs. A and B.) On January 7, 2026, Jimenez served supplemental substantive responses without verification. (Id. at ¶ 6.)

Following a failure to provide verified responses, Bernstein moved to deem the admissions admitted, the hearing of which was scheduled for March 18, 2026. On March 17, 2026, Jimenez served signed verifications on Bernstein. (Id. at ¶ 10, Exs. D and E.) These verifications were insufficient, as Jimenez's verification oath did not comply with statutory requirements. (See §§ 2015.5 and 2033.210, subd. (a).) As Jimenez had not served code-compliant verifications by the time of the hearing date, the Court granted the motion. Jimenez sent corrected verifications later that day. (Mot., Blikian Decl. ¶ 13, Exs. F and G.)

### A. Mistake/Inadvertence/Excusable Neglect

Jimenez claims admissions were deemed admitted due to mistake, inadvertence, or excusable neglect as the motion was only granted due to the insufficient verifications and the Court's inability to review the in-question verifications. The Court disagrees that the Court's inability to review the verifications was a factor, as the March 17, 2026, verifications clearly failed to meet statutory requirements for verification. Therefore, the actual issue was the insufficient verifications. No explanation is provided as to why improper verifications were initially signed and served by Jimenez.

However, in viewing the total circumstances, the Court finds the failure is likely attributable to mistake. It is undisputed Jimenez served substantive responses on January 7, 2026. Jimenez's counsel hired a private investigator to find Jimenez in order to provide verifications. Jimenez attempted to serve the faulty verifications prior to the hearing and, upon Bernstein identifying insufficiencies with the verifications, promptly corrected the issues and served new copies. There is no indication of intent to deprive Bernstein of rightful discovery responses or to 'game' the system to Jimenez's advantage.

## B. Substantial Prejudice

The Court finds there is no indication of substantial prejudice to Bernstein if the Court withdraws the admitted admissions. Jimenez served substantive responses in January—therefore, Bernstein has had access to Jimenez's intended responses for 6 months and should not be surprised by evidence stemming from said responses.

Bernstein makes no argument as to undue prejudice should the Court grant this motion. Therefore, the Court finds no indication of substantial prejudice. The Court grants the motion.

## C. Section 2033.300, subdivision (c), Requests

Bernstein requests the Court order Jimenez to comply with multiple other discovery obligations unrelated to the RFA, pursuant to section 2033.300, subdivision (c). Section 2033.300, subdivision (c), allows the Court to impose conditions that are just, including, but not limited to ordering allowance of additional discovery related to the matter involved in the RFAs and for the party withdrawing admissions to bear the costs of any such discovery.

Although section 2033.300, subdivision (c), is not technically limited to only the outline examples, the Court uses those examples as a baseline for what is a just and appropriate condition for the Court to impose. Both only allow the court to allow additional discovery or costs relating to the RFAs in question. No example allows the court to order a party to appear for or comply with other discovery obligations. The Court finds these limitations just and fair and will only order potential conditions relating to the RFAs. Bernstein's requests to mandate Jimenez appear for deposition and provide further responses to other written discovery are completely divorced from the RFAs. Therefore, said requests would be unjust impositions.

Bernstein's request that Jimenez file a declaration, executed under penalty of perjury, authenticating the March 18, 2026 verifications is also without merit. The verifications are already executed under penalty of perjury—no further oath is required to deem them admissible.

Finally, Bernstein's request the Court impose sanctions of \$2,400.00 for Bernstein's opposition to this motion, pursuant to section 2033.300, subdivision (c)(2), is also without merit. Section 2033.300, subdivision (c)(2) only authorizes the Court to order a party to bear costs of additional discovery, not for motion work associated with this particular request. If the legislature intended for there to be an automatic sanction associated with this type of motion, it would have been included within the statute. Sanctions also would be duplicative, as the Court previously issued sanctions relating to the failure to provide timely verified responses. (See March 18, 2026, minute order.)

Therefore, the Court denies all of Bernstein's requests for impositions of conditions.

## IV. CONCLUSION

Defendant Hector Jimenez's motion to withdraw deemed admissions is GRANTED.

Plaintiff Jeffrey Adam Bernstein's requests for imposition of conditions are DENIED.

Jimenez is ordered to give notice.

DATED: July 21, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at [SMCDEPT730@lacourt.org](mailto:SMCDEPT730@lacourt.org) with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.